



Kenya Institute of Primate Research (KIPRE)

Institutional data protection governance and compliance implementation Strategy

Retreat Concept note

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Background

KIPRE is committed to ensuring the lawful, secure, and responsible processing of personal data in accordance with the Data Protection Act, 2019 (DPA, 2019) and its subsidiary regulations.

The Institute has successfully been registered by the Office of the Data Protection Commissioner (ODPC) as both a Data Controller and a Data Processor.

In addition, the Director General has appointed a Data Protection Officer (DPO) to coordinate institutional compliance with the Act.

While these milestones establish the legal and governance foundation for data protection within the Institute, effective implementation will require institutional structures, policies, operational procedures(SOPs), and coordinated participation across all directorates, divisions, programs, and projects.

Data protection is an organization-wide responsibility that extends beyond the functions of a single office.

To facilitate this transition from regulatory compliance to institutional implementation, KIPRE proposes to convene an Institutional Data Protection Governance and Compliance Implementation Retreat.

The retreat will provide a platform for strengthening institutional capacity, assessing the current state of compliance, identifying implementation priorities, and collaboratively developing the Institute's Data Protection Compliance Implementation Strategy.

Justification

KIPRE processes substantial volumes of personal and sensitive personal data arising from biomedical research, laboratory services, surveillance activities, human resource management, procurement, finance, partnerships, and administrative operations.

Effective management of these data requires coordinated institutional systems that ensure compliance with legal and regulatory requirements while supporting the Institute's research and operational mandate.

Although KIPRE has established the foundational requirements through registration with the ODPC and appointment of a Data Protection Officer, there remains a need to operationalize data protection across the Institute.

This includes strengthening governance structures, enhancing staff awareness, standardizing procedures, identifying institutional compliance gaps, and developing a structured implementation framework.

The proposed implementation strategy will provide the institutional framework for operationalizing compliance with the DPA, 2019 and will serve as the data protection component of KIPRE's broader Data Governance Framework envisaged under the Data Science and Analytics work plan (See appendix 1).

The outputs of the retreat will therefore complement, rather than duplicate, the work of the proposed technical consultant by establishing the governance, compliance, and institutional implementation arrangements necessary for effective data governance.

Purpose

The purpose of the retreat is to strengthen institutional data protection governance and develop a coordinated framework for implementing the Data Protection Act, 2019 within KIPRE.

Objectives

The specific objectives are to:

- i. Strengthen institutional understanding of the Data Protection Act, 2019 and its practical implementation.
- ii. Assess KIPRE's current data protection governance and compliance status.
- iii. Identify institutional risks, compliance gaps, priorities, and resource requirements.

- iv. Establish a network of Data Protection Champions representing key functional areas of the Institute.
- v. Develop and validate the KIPRE Data Protection Compliance Implementation Strategy.
- vi. Develop a costed implementation work plan with clear responsibilities and timelines.

Proposed participants

The retreat will bring together representatives from:

1. Office of the Director General
2. Research Directorates and Programs
3. Human Resource and Administration
4. Information Communication Technology
5. Finance
6. Procurement
7. Internal Audit
8. Corporate Communications
9. Monitoring and Evaluation
10. Legal (where applicable)
11. Laboratory Services
12. Data Protection Champions from each directorate or division

Resource persons may be invited from the Kenya School of Law and other relevant institutions, subject to availability.

Approaches

The retreat will be conducted through a combination of:

1. Presentations by resource persons.
2. Review of the Data Protection Act, 2019 and related regulations.
3. Institutional compliance assessment.
4. Group discussions by functional area.
5. Plenary sessions.
6. Collaborative drafting of the implementation strategy.
7. Validation of proposed implementation activities and priorities.

Expected outcomes

The retreat is expected to produce:

- A validated KIPRE Data Protection Compliance Implementation Strategy.
- A costed implementation work plan.
- A network of Data Protection Champions.
- An institutional data protection compliance gap assessment.

- Recommendations for revision of the KIPRE Data Protection Policy.
- Priority actions for strengthening institutional data protection governance.
- Enhanced staff capacity on data protection compliance.

Duration and venue

The retreat is proposed to take place over Six (6) days at a suitable venue to allow adequate time for technical discussions, group work, and strategy development.

Budget

A detailed budget will be developed to cover venue costs, accommodation, conference facilities, meals, transport, facilitation, stationery, printing of workshop materials, and other logistical requirements.

Recommendation

Management is requested to approve the proposed Institutional Data Protection Governance and Compliance Implementation Retreat to facilitate the development of KIPRE's Data Protection Compliance Implementation Strategy and strengthen institutional compliance with the Data Protection Act, 2019.

Appendices

1.1 Institutional Data Governance Framework structure

